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File No.: EXP202205523

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 6, 2022. The complaint is directed against the AYUNTAMIENTO DE CHINCHÓN with NIF P2805200I (hereinafter the Town Hall). The reasons for the complaint are as follows:

The complainant states that the Town Hall has published the budgets for the year 2021 on its website and that the mentioned document includes a list of all job positions along with the identity of the person occupying them (name and surname). Additionally, the following information is provided: status of the position (permanent civil servant, interim, labor, belonging group to the administration), base salary, destination supplement, specific supplement, triennia, salary, social security, and the total amount of remuneration paid for the job position.

The complainant claims that he verbally requested the withdrawal of this list as he had received numerous complaints from workers and that the Town Hall refused to withdraw the mentioned document.

The complainant is the Data Protection Officer of the Town Hall.

On 12/10/21, the complainant submitted an inquiry to this Spanish Agency for Data Protection (hereinafter AEPD) regarding the aforementioned facts.

Along with the complaint, the following documents are submitted:

- Copy of the published document
- Written inquiry submitted to the AEPD on December 10, 2021.
- Response given by the AEPD to the inquiry, dated February 23, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the Town Hall for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 12, 2022, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: By means of a letter dated July 4, 2022, the forwarding of the complaint and request for information to the Town Hall was reiterated, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and was acknowledged on July 12, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

FOURTH: On July 6, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FIFTH: On June 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which it transcribes the literal content of a report from the Secretary of the Town Hall requested for this purpose, which, in

summary, states the following.

First:

The Town Hall alleges that in this case, based on the initial approval of the municipal budget, the publication of the Town Hall's staff template was carried out.

Thus, the Town Hall indicates that, in this regard, several issues must be taken into account in the present case:

The first of these is Article 45.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which establishes that:

“1. Administrative acts shall be published when so established by the regulatory norms of each procedure or when advised by reasons of public interest assessed by the competent body.

In any case, administrative acts shall be published, producing the effects of notification, in the following cases:

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a) When the act is addressed to an indeterminate plurality of persons or when the Administration deems that the notification made to a single interested party is insufficient to ensure notification to all, being, in the latter case, additional to the individually made notification.

In this regard, the City Council indicates that the template document is addressed to a plurality of interested parties, as is the case here, which is directed at the workers so that, in the event of observing discrepancies in their salary, they can claim if there is any error and correct it in the final approval, as occurred in this case by at least one worker and is modified in the final approval. All of this, with the clarifications that, regarding its challenge, it is maintained that the template has the legal nature of a general provision, so that no appeal for reconsideration can be filed against its approval, and one must go directly to the contentious-administrative jurisdiction.

To this end, the City Council brings to attention the Supreme Court ruling of March 13, 2012, which clearly states that "the General Budget of a Local Entity, to which the annex of the personnel at its service determining its Organic Template must be attached, does not constitute an administrative act, but rather a general provision." And according to the High Court of Justice of Castilla La Mancha ruling dated July 9, 2012, "the first thing to note, regarding the inadmissibility of the reconsideration appeal agreed upon by the defendant City Council, is that such inadmissibility is based on the fact that the Personnel Template has the legal nature of a general provision, of local regulation, as stated in the Supreme Court rulings of December 26, 1990, January 24, 1995, and September 28, 1998."

The City Council also points out that Article 168.1 of Royal Legislative Decree 2/2004, of March 5, which approves the consolidated text of the Law Regulating Local Finances regarding the procedure for preparation and initial approval indicates that:

“1. The budget of the Local Entity shall be prepared by its President and the following documentation shall be attached to it:

a) Explanatory memorandum of its content and the main modifications it presents in relation to the current one.

b) Settlement of the budget for the previous financial year and progress of the current one, referring, at least, to six months of the current financial year.

c) Annex of personnel of the Local Entity.

d) Annex of the investments to be made in the financial year.

e) Annex of tax benefits in local taxes containing detailed information on the tax benefits and their impact on the revenues of each Local Entity.

f) Annex with information relating to the agreements signed with the Autonomous Communities regarding social spending, specifying the amount of payment obligations and the economic rights that must be recognized in the financial year to which the general budget refers and the pending payment obligations and economic rights pending collection, recognized in previous financial years, as well as the application or budget item in which they are included, and the reference that such agreements.”

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include the resource retention clause of the financing system referred to in Article 57 bis of Law 7/1985, of April 2, regulating the Bases of the Local Regime.

g) An economic-financial report, in which the bases used for the evaluation of the expected revenues and credit operations are presented, the sufficiency of the credits to meet the enforceable obligations and the operating expenses of the services, and consequently, the effective leveling of the budget.”

In this regard, the City Council indicates that Article 169.1 of Royal Legislative Decree 2/2004, of March 5, which approves the consolidated text of the Law Regulating Local Finances states: “Once the general budget is initially approved, it will be made available to the public, following an announcement in the official bulletin of the province or, where applicable, of the uniprovincial autonomous community for 15 days, during which interested parties may examine it and submit claims to the Plenary. The budget will be considered definitively approved if no claims have been submitted during the aforementioned period; otherwise, the Plenary will have one month to resolve them.”

Royal Legislative Decree 781/1986, of April 18, which approves the consolidated text of the current legal provisions regarding Local Regime in Articles 126.1 and 4 and 127 states:

“Art. 126.

1. The staffing tables, which must include all duly classified positions reserved for civil servants, labor personnel, and temporary staff, will be approved annually at the time of the Budget approval and must respond to the principles set forth in Article 90.1 of Law 7/1985, of April 2. They will be accompanied by the background, studies, and documents proving that they comply with the aforementioned principles.”

.....

4. The lists of positions, which will in any case contain the content provided for in the basic legislation on public function, will be prepared in accordance with the rules set forth in Article 90.2 of Law 7/1985, of April 2.”

“Art. 127.

Once the staffing table and the list of positions have been approved, a copy will be sent to the State Administration and, where applicable, to the respective Autonomous Community, within thirty days, without prejudice to its full publication in the “Official Bulletin of the Province,” along with the summary of the Budget.”

Therefore, the City Council concludes that the document is published so that interested parties can make allegations, which, if they are not identified, they would not be able to submit.

Furthermore, the City Council reminds that Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights establishes in

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Regarding the seventh additional provision concerning the identification of interested parties in notifications through announcements and publications of administrative acts:

“When it is necessary to publish an administrative act that contains personal data of the affected party, the individual will be identified by their first and last name, adding four random numerical digits from their national identity document, foreign identity number, passport, or equivalent document. When the publication refers to multiple affected parties, these random digits must be alternated.”

In this regard, the City Council indicates that in the present case, only the first and last names are provided, without including any DNI number.

Second:

The City Council claims that there is also an obligation for active publication. Thus, it points out that the next issue is that we are dealing with public employees, which raises controversy with Article 105.c of the CE and Law 19/2013, of December 9, on transparency, access to public information, and good governance.

In this sense, the City Council indicates that it is necessary to examine the interpretation of Article 19.3 of the LTAIBG analyzed in several rulings, among which it cites the Supreme Court ruling of October 15, 2020, Res. 1338/2020 (Rec. 3846/2019), which recalls Article 15.1.b of Law 30/1984 of August 2, indicating that "the job position lists shall include, in any case, the designation, type, and system of provision of the same; the requirements demanded for their performance; the level of destination complement and, where applicable, the specific complement corresponding to them, when they are to be performed by civil servants, or the professional category and applicable legal regime when they are performed by labor personnel."

And in its section 3, it states that the job position lists will be public.

The City Council indicates that, for its part, section 2 of Article 15 of Law 19/2013, of December 9, on Transparency, Access to Public Information, and Good Governance, provides:

"2. In general, and unless in the specific case the protection of personal data and other constitutionally protected rights prevails over the public interest in disclosure that prevents it, access will be granted to information that contains merely identifying data related to the organization, functioning, or public activity of the body."

The aforementioned ruling adds that: "It is worth recalling here the Interpretative Criterion CI/1/2015, of June 24, 2015, of the Transparency and Good Governance Council and the Data Protection Agency regarding the scope of the obligations of bodies, agencies, and entities of the state public sector concerning access to public information about their Job Position Lists (RPT), catalogs,

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organic templates, etc., and the remuneration of their employees or officials, in which it was established:

"A. In principle and generally, the information related to the RPT catalog or organic template with or without identification of the public employees or officials occupying the positions is considered merely identifying data related to the organization, functioning, or public activity of the body, so that, in accordance with Article 15, number, of Law 19/2013, and unless in the specific case the protection of personal data or other constitutionally protected rights prevails over the public interest in disclosure, access to the information will be granted."

Precisely regarding this Interpretative Criterion, the Social Chamber of this Supreme Court has ruled in the Judgment of December 16, 2019, in which the obligation of the General Administration of the State to provide a union with the "occupation lists" was examined, which must contain the specific and individualized relationship of the jobs in the Job Relations, the name and surname of the position holder, where applicable, and the address of the workplace to which the position is assigned.

The aforementioned Social Chamber reasons as follows:

"In this case, the defendant party denies the delivery of the lists because it is specified that they include the name and surname of the workers, basic data that undoubtedly constitutes precise information for their identification and location within the organizational structure of the company and that, therefore, are necessary for the development of the corresponding employment relationship. Consequently, we are dealing with data that do not require the consent of the affected party to be collected by the company.

(...) Therefore, it will be justified that the company communicates personal data of the workers to the legal and/or union representatives so that they can exercise the powers granted to them by law, being this a scenario that fits the exception of art. 11.2 a) LOPD. It seems evident that if both art. 64 ET and 10.3.1 LOLS grant rights of information and documentation to the unitary and union representatives, obtaining the same through the company's communication will be protected by that exception when, in

fact, it concerns data that has a direct connection with the exercise of those powers.

But in this case, the need to identify the workers occupying each of the positions listed in the RTP is not trivial, since personal elements relate to aspects such as training, qualifications, and specialization, also being necessary to delineate the circumstances of the vacancies, their coverage, order of priorities, systems of replacement and promotion, etc."

The City Council points out that it has proceeded to a publication in its own venue for the knowledge of the workers, and they, as public employees, have not included their ID numbers, which it understands is in accordance with the Interpretative Criterion C1/001/2015 of June 24, 2015, regarding the scope of the obligations of the bodies, agencies, and

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entities of the state public sector regarding access to public information about their Job Position Relationships (RPT), catalogs, organizational templates, etc., and the remuneration of their employees and officials.

The City Council notes that the aforementioned interpretative criterion is established in interpretative criterion 1, concerning the information related to the RPT, catalogs, organizational templates, etc., of the public bodies and entities of the state public sector listed in Article 2 of the LTAIBG.

Thus, the City Council indicates that interpretative criterion 1A states that:

"A. In principle and generally, the information related to the RPT catalog or organizational template with or without identification of the public employees or officials occupying the positions is considered merely identifying data related to the organization, functioning, or public activity of the body, so that, in accordance with Article 15 number of Law 19/2013, and unless in the specific case the protection of personal data or other constitutionally protected rights prevails over the public interest in disclosure, access to the information will be granted."

In this regard, the City Council argues that, in the present case, the Data Protection Delegate acting as the complainant did not inform whether there exists or may exist any case established in interpretative criterion 2B, which indicates that:

"Notwithstanding this, and in any case:

a) The information -always assuming that it is mandatory to provide it in accordance with the rules of section A- will not be provided when access would cause harm to one or more of the goods listed in Article 14.1 of the LTAIBG and the limitation is justified, proportionate to its object and purpose of protection, and has taken into account the circumstances of the specific case, especially the existence of a superior interest that justifies access.

b) It will also not be provided when access affects one or more public employees or officials who are in a situation of special protection -e.g., that of a victim of gender-based violence or that of a subject of a terrorist threat-, which may be aggravated by the disclosure of information related to the job position they occupy.

In this latter case, if the body, agency, or entity responsible for the information is aware or could reasonably deduce from the information it possesses that any of the employees concerned by a request for information may be in a situation of special protection, it must obtain from the affected party the necessary information to clarify whether the assumption is indeed present and proceed accordingly with the response."

Therefore, the City Council concludes that it seems that the publication made is in accordance with the law, unless there exists any cause under interpretative criterion 2.B of Interpretative Criterion C1/001/2015 of June 24, 2015, which should have been...

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has been informed by the Data Protection Officer whether he was aware of any specific case, in order to proceed to conceal the data that would apply in his case, which was not carried out by him.

Third

The City Council indicates that, in this case, it is the Data Protection Officer himself who acts as the complainant and that, likewise, it is observed that he has been the one who has received the notifications to date, which has impeded the right of defense of this City Council until now.

The City Council indicates that it is the complainant himself who is responsible for data protection, who did not legally advise the corporation to correctly balance the right to data protection of the workers with the right of access to information regulated in Law 19/2013, of December 9, on transparency, access to public information, and good governance.

The City Council indicates that the above is evident in the consultation made by the complainant himself, which, after a request from the AEPD, was not answered by him, which presumably leads to the opening of this file.

For all these reasons, the City Council requests that the sanctioning file be archived based on:

- Not having made the notifications to the interested party as they were interfered with and received by the complainant himself.
- The publication being covered by what has been analyzed above and specifically based on the Interpretative Criterion C1/001/2015 of June 24, 2015.

SEVENTH: On May 13, 2024, a proposal for resolution was made, in which it is proposed that the Director declare that the CITY COUNCIL OF CHINCHÓN, with NIF P28052001, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR, respectively.

This proposal for resolution was electronically notified to the City Council. This is required by Article 14.2 of Law 39/2015 on Common Administrative Procedure of Public Administrations (LPACAP), according to which "In any case, the following subjects shall be obliged to communicate electronically with Public Administrations for the completion of any procedure of an administrative process: a) Legal entities."

A Certificate issued by the Electronic Headquarters Management Service is included in the file, which records the sending of the proposal for resolution, notification from the AEPD addressed to the City Council, through that means, with the date of availability in the electronic headquarters of the agency being May 13, 2024, and the date of automatic rejection being May 24, 2024.

Article 43.2 of the LPACAP establishes that when the notification by electronic means is mandatory - as is the case here - "it shall be understood as rejected when ten calendar days have elapsed since the notification was made available without access to its content."

It should be added that Articles 41.5 and 41.1, third paragraph, of the LPACAP establish, respectively, that:

When the interested party or their representative rejects the notification of an administrative action, it shall be recorded in the file specifying the circumstances of the notification attempt and the means, considering the procedure completed and continuing the process. (The underlining is from the AEPD) Regardless of the means used, notifications shall be valid as long as they allow for proof of their sending or availability, of the receipt or access by the interested party or their representative, of their dates and times, of the full content, and of the reliable identity of the sender and recipient. The accreditation of the notifications made shall be incorporated into the file.

EIGHTH: Article 73.1 of the LPCAP establishes that the deadline for submitting allegations to the Initiation Agreement is ten days counted from the day following the notification.

No allegations have been submitted to the proposal for resolution.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The City Council of Chichón, in December 2021, published the budgets for the year 2022 on its website. The cited document contains a list of all the job positions of the employees of the City Council along with the identity of the person occupying them (name and two surnames). Along with this

identification, the following information is also provided:

- Denomination of the job position occupied by each employee
- Status of the position: "permanent official," "temporary official," "permanent labor equivalent," "temporary assignment equivalent," "definitive assignment equivalent," "definitive affiliation," "temporary affiliation," and indicating in all of them the group of belonging to the administration (A1, A2, C1, E, etc.).
- Annual amounts to be received from the base salary, destination complement, specific complement
- Annual amount to be received for triennia and according to the groups of belonging to the administration that they occupy and have occupied.
- Annual amount to be paid to social security
- Annual amount to be received as "salary"
- Total annual final amount of the remuneration to be received for the job position.
- Whether they are contracted full-time or part-time.

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SECOND: The complainant, in addition to appearing in the published list and therefore being affected by the indicated processing, is the Data Protection Officer of the City Council.

THIRD: On December 10, 2021, the complainant submitted an inquiry to this Spanish Agency for Data Protection (hereinafter AEPD) regarding these facts, to which the agency responded informatively by means of a letter dated February 23, 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that the City Council carries out, among other processing activities, the collection, registration, organization, structuring, storage, use, access, etc., of the following personal data of individuals, such as: name and surname, identification number, contact details, employment data, remuneration data, etc.

The City Council carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Allegations to the initiation agreement

In response to the allegations presented to the Initiation Agreement by the entity being complained about, the following should be noted:

First:

The City Council justifies the publication of the staff template on the basis that it was before the initial approval of the municipal budget for the fiscal year 2022, which, due to its nature as a general provision, is subject to various regulations that apply to the local entity (Royal Legislative Decree 781/1986, of April 18, which approves the consolidated text of the current legal provisions regarding Local Regime; Royal Legislative Decree 2/2004, of March 5, which approves the consolidated text of the Law Regulating Local Finances) that require the publication of both the templates, the Job Position Relations (RPT), as well as the draft Budget and the final Budget of the City Council.

The City Council expressly states that since Article 169.1 of Royal Legislative Decree 2/2004, of March

5, requires that before the definitive approval of the budget, it must be exposed to the public for 15 days so that interested parties can examine it and submit claims, it was therefore mandatory to publish the document in question so that interested parties could make allegations and that if they were not identified, they could not submit them.

This is why the City Council maintains that the publication of the "template document" is justified, as in accordance with Article 45.1 of the LPACAP, it was necessary since it is directed at a plurality of interested parties (the workers) so that, in the event of discrepancies in their salary, they can allege if there is any error and correct it before the definitive approval, since as the staff template has the legal nature of a general provision, it cannot be contested through administrative channels, which would require going directly to the contentious-administrative jurisdiction.

Furthermore, the City Council points out that only the name and surname have been indicated, without including the D.N.I., thus complying with the requirements set forth in the Seventh Additional Provision of the LOPDGDD.

In this regard, it is necessary to clarify and distinguish, on the one hand, what must be published due to the requirements of the applicable regulations regarding the preparation of budgets of a Public Administration, in this case, a Local Entity, as well as the publicity requirements of the templates, RPT, and other related instruments, and, on the other hand, the manner and circumstances in which it is appropriate to notify, through publication, administrative acts.

Thus, Article 168.1 of Royal Legislative Decree 2/2004, of March 5, which approves the consolidated text of the Law Regulating Local Finances regarding the procedure for the preparation and initial approval states:

"1. The budget of the Local Entity shall be formed by its President and the following documentation shall be attached:

a) Explanatory memorandum of its content and the main modifications it presents in relation to the current one.

b) Settlement of the budget of the previous fiscal year and advance of the current one, referring, at least, to six months of the current fiscal year.

c) Annex of personnel of the Local Entity.

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d) Annex of the investments to be made in the fiscal year.

e) Annex of tax benefits in local taxes containing detailed information on the tax benefits and their impact on the revenues of each Local Entity.

f) Annex with information related to the agreements signed with the Autonomous Communities regarding social spending, specifying the amount of payment obligations and the economic rights that must be recognized in the fiscal year referred to in the general budget, as well as the pending payment obligations and economic rights pending collection, recognized in previous fiscal years, along with the application or budget item in which they are recorded, and the reference that such agreements include the resource retention clause of the financing system referred to in Article 57 bis of Law 7/1985, of April 2, regulating the Bases of the Local Regime.

g) An economic-financial report, in which the bases used for the evaluation of the expected revenues and credit operations are presented, the sufficiency of the credits to meet the enforceable obligations and the operating expenses of the services, and consequently, the effective leveling of the budget."

Article 169.1 of the aforementioned Legislative Royal Decree 2/2004 states that: "Once the general budget has been initially approved, it shall be made available to the public, following an announcement in the official bulletin of the province or, where applicable, of the uniprovincial autonomous community, for 15 days, during which interested parties may examine it and submit claims to the Plenary. The budget shall be considered definitively approved if no claims have been submitted during the aforementioned period; otherwise, the Plenary shall have a period of one month to resolve them."

Article 170 of the aforementioned Legislative Royal Decree 2/2004, relating to "Administrative Claim:

active legitimacy and causes,” establishes that:

“1. For the purposes of the provisions of paragraph 1 of the previous article, the following shall be considered interested parties:

- a) The inhabitants in the territory of the respective local entity.
- b) Those who are directly affected, even if they do not reside in the territory of the local entity.
- c) The official colleges, official chambers, unions, associations, and other legally constituted entities to safeguard professional, economic, and neighborhood interests, when acting in defense of their own interests.

2. Claims against the budget may only be filed:

- a) For not having adjusted its preparation and approval to the procedures established in this law.
- b) For omitting the necessary credit for the fulfillment of enforceable obligations to the local entity, by virtue of legal provision or any other legitimate title.
- c) For the manifest insufficiency of revenues in relation to the budgeted expenses or vice versa regarding the needs for which it is intended.”

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From the above, it is deduced that, for the purposes of preparing the budget of the local entity, what is being regulated in these provisions is the public information procedure to which said budget must be subjected before its final approval, which does not obligate or justify in any way the publication of the document in question with the information it contained and with the identification of the names and surnames of the workers of the entity, as is intended.

On the other hand, regarding the obligation of publicity of the technical instruments through which public administrations organize and structure their human resources, such as organic or personnel templates, RPT, and other similar documents or instruments, regardless of their designation and that serve the same purpose, the applicable regulations to the Municipality in question indicate the following:

Royal Legislative Decree 781/1986, of April 18, which approves the consolidated text of the current legal provisions regarding Local Regime in articles 126.1 and 4 and 127 indicate:

“Art. 126.

1. The templates, which must include all the classified job positions reserved for officials, labor personnel, and temporary staff, shall be approved annually upon the approval of the Budget and must respond to the principles set forth in article 90.1 of Law 7/1985, of April 2. They shall be accompanied by the background, studies, and documents certifying that they comply with the aforementioned principles.”

.....

4. The lists of job positions, which shall in any case contain the content provided for in the basic legislation on public function, shall be prepared in accordance with the rules established in article 90.2 of Law 7/1985, of April 2.”

“Art. 127.

Once the template and the list of job positions have been approved, a copy shall be sent to the State Administration and, where applicable, to the respective Autonomous Community, within thirty days, without prejudice to its full publication in the "Official Bulletin of the Province," along with the summary of the Budget.”

For its part, article 90.2 of the aforementioned Law 7/1985, of April 2, Regulating the Bases of the Local Regime, establishes:

“2. Local Corporations shall form the list of all job positions existing in their organization, in the terms provided for in the basic legislation on public function. It is the responsibility of the State to establish the rules according to which the lists of job positions, the description of standard job positions, and the conditions required for their creation shall be prepared, as well as the basic rules of the administrative career, especially by...”

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referring to the promotion of officials to higher levels and groups.”

Regarding the content of the RPT, Royal Legislative Decree 5/2015, of October 30, which approves the consolidated text of the Basic Statute of Public Employees, states in its Article 74 Organization of Positions:

“The Public Administrations shall structure their organization through job relations or other similar organizational instruments that shall include, at a minimum, the designation of the positions, the professional classification groups, the bodies or scales, where applicable, to which they are assigned, the systems of provision, and the complementary remuneration. These instruments shall be public.”

On the other hand, the City Council, by bringing up the Judgment of the Supreme Court of October 15, 2020 (Rec. 3846/2019), recalls Article 15.1 b) of Law 30/1984, of August 2, on measures for the reform of the Public Function (a provision that remains in force) which states:

“b) The job relations shall indicate, in any case, the designation, type, and system of provision of the same; the requirements demanded for their performance; the level of destination complement and, where applicable, the specific complement corresponding to them, when they are to be performed by civil servants, or the professional category and applicable legal regime when they are performed by labor personnel.”

From the reading of the aforementioned provisions, it is reflected that the staff templates and/or the RPT must be public. Regarding their content, it refers to the designation of the positions, the professional classification groups, the bodies or scales, the systems of provision, and the complementary remuneration (level of destination complement and, where applicable, the specific complement corresponding to them, when they are to be performed by civil servants), professional category when performed by labor personnel, etc. That is to say, to a description of the job positions. However, in none of them is it indicated or required the publication of all the information contained in the document published by the City Council, much less with the indication of the names and surnames of the holders of the positions (the workers). Furthermore, part of that information refers to personal labor circumstances of the workers (for example, the specific triennia recognized for each employee and the belonging groups in which they were fulfilled, which reflects and allows knowing the administrative career and seniority of each specific employee) and which are personal data of the same, and no Law obliges or permits their dissemination through publication on the internet. All of this highlights an excessive publication of personal data not covered by the Law and that has allowed access by any person to the same.

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On the other hand, the City Council argues that the "template document" was published so that employees could claim the existence of any errors or discrepancies, and that this was done in accordance with Article 45.1 a) of the LPACAP, as it is directed at a plurality of interested parties (the workers) and that it was necessary to publish it with their names and surnames because if they are not identified, they would not be able to claim. Furthermore, this publication was carried out in accordance with the provisions of Additional Provision 7 of the LOPDGDD, as the D.N.I. does not appear.

In contrast, and without assessing the appropriateness of informing City Council employees in some way about the salaries they will receive in a specific budgetary year and in advance of the final approval of the entity's Budget so that they can make claims, and that for this the City Council decides that the indicated regulations apply, it should be noted that the aforementioned regulations refer to the notification of administrative acts through their publication.

The seventh additional provision of the LOPDGDD referred to, regarding the Identification of interested

parties in notifications through announcements and publications of administrative acts, establishes in its section 1 the following:

1. When the publication of an administrative act containing personal data of the affected party is necessary, the affected party shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated.

When it comes to notification by means of announcements, particularly in the cases referred to in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the affected party shall be identified exclusively by the complete number of their national identity document, foreign identity number, passport, or equivalent document.

When the affected party lacks any of the documents mentioned in the two preceding paragraphs, the affected party shall be identified solely by their name and surname. In no case should the name and surname be published together with the complete number of the national identity document, foreign identity number, passport, or equivalent document.

For its part, the LPCAP distinguishes between notification and publication in its Articles 44 and 45. The former deals with: "When the interested parties in a procedure are unknown, the place of notification is ignored or, if attempted, the notification could not be carried out, it shall be done by means of an announcement published in the 'Official State Bulletin,' while Article 45 refers to the fact that 'Administrative acts shall be subject to publication when established by the regulations governing each procedure or when advised by reasons of public interest assessed by the competent body,' and establishes that in any case they will be carried out, for the purposes of notification, in the cases indicated:

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Thus, the aforementioned Article 45 states:

1. Administrative acts shall be subject to publication when established by the regulatory norms of each procedure or when advised by reasons of public interest assessed by the competent authority.

In any case, administrative acts shall be subject to publication, which shall have the effects of notification, in the following cases:

- a) When the act is addressed to an indeterminate plurality of persons or when the Administration deems that notification made to a single interested party is insufficient to guarantee notification to all, being, in the latter case, additional to the individually made notification.
- b) When it concerns acts that are part of a selective procedure or competitive bidding of any kind. In this case, the call for the procedure must indicate the means by which the successive publications will be made, and those made in different places shall be invalid. (the underlining is ours)

Therefore, to apply the assumption put forth by the City Council, it is not only necessary that there be a plurality of recipients, but it must also be indeterminate, which does not apply in the present case, as the workers and employees of the City Council are fully determined and identified, as they are part of its own staff, and as reflected by the fact that the published document perfectly identifies all employees and the positions they occupy and other circumstances related to them.

Therefore, it is not appropriate to justify, as the City Council intends, that the notification by publication was carried out in accordance with the provisions of the Seventh Additional Provision of the LOPDGDD, since what is required therein is based on the premise of when the publication of an administrative act is necessary. However, in the present case, such publication was not appropriate, but rather, if applicable, the individualized notification of the act to each of the workers and exclusively regarding their own remuneration and not that of the other workers.

Moreover, even in the event that such notification by publication had been appropriate, it would still violate the applicable regulations, both those of common administrative procedure and those of data protection.

Thus, for notification and publication, the LPCAP provides in Article 46 regarding Indication of notifications and publications, that "If the competent authority considers that notification by means of announcements or the publication of an act infringes rights or legitimate interests, it shall limit itself to publishing in the corresponding Official Gazette a brief indication of the content of the act and the place where interested parties may appear, within the established timeframe, to be informed of the full content of the aforementioned act and to record such knowledge."

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Furthermore, regardless of the method of notification of the administrative act to the interested parties, it is certain that Article 40.5 of the LPACAP establishes a provision applicable to all types of notifications of resolutions and administrative acts that must be carried out within the administrative procedure, whether these are electronic notifications, paper notifications, or through publication on a notice board (in this case, the website of the Ministry). This section states:

5. The Public Administrations may adopt the measures they deem necessary for the protection of personal data contained in the resolutions and administrative acts when these are addressed to more than one interested party.

The above is a consequence of the right of all individuals in their relations with the Administration, as established by Article 13 h) of Law 39/2015, to the protection of personal data, and in particular to the security and confidentiality of the data contained in the files, systems, and applications of the Public Administrations, which ultimately determines the subjection of public administrations in the data processing they carry out to the provisions of the GDPR, the LOPDGDD, and other applicable regulations in the matter.

As a consequence, this "possibility" for the Administration ("may") established in Article 40, section 5, is not actually such, but rather a true obligation for the administration to exhaust the measures that preserve the right to data protection of the individuals who relate to it.

Therefore, whether it is understood that it was appropriate to publish directly or that it was appropriate to notify by means of an announcement, in both cases, if it is perceived that it may infringe upon rights or legitimate interests, only a brief indication of the content should have been published (and complying with what is indicated in DA7º LOPDGDD) with an indication of the place where the interested party could appear within the period established for knowledge of the full content of the act and confirmation of such knowledge.

Thus, the publication made has violated the confidentiality of personal data.

Second:

The City Council argues that it was necessary to publish the document in question because there is also an obligation of active publicity, in accordance with Law 19/2013, of December 9, on transparency, access to public information, and good governance (LTAIBG). To this end, it is supported by the Interpretative Criterion CI/001/2015, a joint criterion of the Transparency and Good Governance Council and the AEPD. It also relies on the Judgment of the Social Chamber of the Supreme Court of December 16, 2019.

In this regard, it should be noted that the active publicity required by the transparency laws that may be applicable should not be confused with access to public information also regulated therein, and it is especially important to differentiate from all of this the access to information to which Trade Unions and other legal representatives of workers may be entitled.

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In the present case, the cited Supreme Court Judgment does not apply, as we are faced with a publication on the website of the City Council of a document containing personal data of its employees

and not a transfer of data to a Union or to representatives of the workers, which is legitimized, in the case of the Judgment, to allow the exercise of union action for the promotion and defense of the economic and social interests of the workers, as part of the fundamental right to freedom of association regulated in Organic Law 11/1985, of August 2, on Freedom of Association.

Furthermore, regarding Joint Criterion CI/001/2015, the City Council states that it indicates that “the information related to the RPT, catalog, or organic template, with or without identification of the employees or public officials occupying the positions, is considered merely identifying data related to the organization, functioning, or public activity of the body, so that in accordance with article 15, number 2 of the LTAIBG and unless in the specific case the protection of personal data or other constitutionally protected rights prevails over the public interest in disclosure, access to the information will be granted.”

The City Council also states that, in accordance with what is indicated in point II.1.B of the aforementioned interpretative criterion, regarding that information will not be provided when access would harm one or more of the goods listed in article 14.1 LTAIBG or when access affects public employees in a situation of special protection, the publication of the document as it was done should not have proceeded, and this should have been informed by the Data Protection Delegate acting as the complainant, which was not done by him.

However, it should be noted that the aforementioned criterion, relating to the “Scope of the obligations of the bodies, agencies, and entities of the state public sector regarding access to public information about their Job Position Relations (RPT) catalogs, organic templates, etc., and the remuneration of their employees” is also not applicable, as it only refers to the exercise of the right of access to public information and not to active publicity through the publication of information, as has occurred in the case at hand. Thus, in that criterion, in section III SCOPE, it expressly states the following:

“As stated in the heading of this document, the interpretative criteria established refer exclusively to access to public information related to the issues expressly indicated. In no case are these criteria applicable to the publication of such information under the active publicity regime provided for in articles 5 and following of the LTAIBG” (the emphasis is ours).

Regarding the fact that the Data Protection Delegate of the entity did not inform or advise it on whether the publication made was or was not in accordance with the limits and warnings indicated in the aforementioned interpretative Criterion, several things should be noted. First, the aforementioned regarding the fact that the mentioned Criterion is not applicable to active publicity (publications on the electronic headquarters or website of the public administration in question).

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Secondly, the City Council, as the data controller, is solely responsible for compliance with the GDPR and all applicable data protection regulations concerning the processing of personal data it carries out. This is clearly stated in Article 24.1 of the GDPR, which establishes that “Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures shall be reviewed and updated as necessary.”

Therefore, it cannot excuse the unlawfulness of the processing or the breach of its obligations in this area by claiming a lack or insufficiency in the advice from its Data Protection Officer. Even less acceptable, based on the aforementioned, is what the City Council indicates regarding the fact that “the claimant himself is the data protection officer, who did not provide legal advice to the corporation to correctly balance the workers' right to data protection with the right of access to information regulated in Law 19/2013, of December 9, on transparency, access to public information, and good governance,” because, as noted, it is the City Council, as the data controller of the data it processes in the exercise of its functions, that must ensure and be able to demonstrate that the processing is in

compliance with the GDPR.

Thirdly, there is no record nor has the City Council proven that it consulted the Data Protection Officer of the local entity in advance of the publication of the document, thereby giving the local entity the opportunity to advise on this matter. It should not be forgotten that, in accordance with the proactive responsibility established by the GDPR, in addition to what is stated in the aforementioned Article 24, "The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('proactive responsibility')" (Article 1.2 GDPR) (the emphasis is ours). Moreover, in the very complaint submitted by the Data Protection Officer, he states that "he verbally requested certain members of the government team to withdraw that list as he had received numerous complaints from workers due to the observations made by many neighbors regarding the remuneration they receive, and that the City Council refused to withdraw the aforementioned document as the Secretary of the City Council had indicated that names could be published as long as they do not appear alongside the ID number."

In this regard, it is appropriate to recall the position granted to the Data Protection Officer by the GDPR, when in its Article 38 "Position of the Data Protection Officer" it determines that:

1. The controller and the processor shall ensure that the data protection officer is involved properly and in a timely manner in all issues relating to the processing of personal data.
2. The controller and the processor shall support the data protection officer in performing the tasks mentioned in the

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Article 39, providing the necessary resources for the performance of such functions and access to personal data and processing operations, and for the maintenance of their specialized knowledge.

3. The data controller and the data processor shall ensure that the data protection officer receives no instructions regarding the performance of such functions. They shall not be dismissed or sanctioned by the controller or the processor for carrying out their functions. The data protection officer shall report directly to the highest hierarchical level of the controller or processor. (the underlining is ours)

Third:

The City Council requests that the file be archived since notifications could not be made, as it was the complainant himself, the Data Protection Officer of the entity being complained about, who received them on behalf of the City Council without informing the responsible parties, which has hindered the right to defense of the City Council up to this point.

In this regard, it is noted that the notifications referred to by the City Council were the two times that this Agency sent the complaint for analysis and to inform this Agency of the actions taken to comply with the requirements set forth in the data protection regulations, in accordance with Article 65.4 of the LOPDGDD.

In the case at hand, as noted in Background Sections Two and Three, the transfer was made on two occasions, which were carried out in accordance with the rules established in the LPACAP, as they were made via electronic notification to the Authorized Electronic Address and were collected in a timely manner as evidenced by the acknowledgment of receipt in the file.

In this regard, it is appropriate to recall that Article 65.4 of the LOPDGDD states the following:

"4. Before resolving on the admission of the complaint for processing, the Spanish Data Protection Agency may refer it to the data protection officer designated by the controller or processor, if applicable, or to the supervisory body established for the application of codes of conduct for the purposes provided for in Articles 37 and 38.2 of this organic law.

The Spanish Data Protection Agency may also refer the complaint to the controller or processor when no data protection officer has been designated or when they are not adhered to extrajudicial conflict resolution mechanisms, in which case the controller or processor must respond to the complaint within one month."

Therefore, on one hand, the transfer that the AEPD makes of the complaint submitted to the controller

or to the data protection officer, in accordance with the aforementioned provision, is discretionary for the Agency, that is, it is not mandatory to carry it out.

On the other hand, it is a prior and independent procedure from the initiation of a sanctioning procedure, which is always initiated ex officio by the competent administration.

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In this case, the Agreement to Initiate the present sanctioning procedure was notified to the City Council in accordance with the rules established in the LPACAP, being collected by the same. Subsequently, it requested this Agency to send a copy of the complete file, which was sent, and in a timely manner, the City Council has submitted the allegations to the Agreement to Initiate which are now addressed in this section.

Therefore, no defenselessness has been caused to the City Council in the present sanctioning procedure as it has been notified, in accordance with the applicable regulations, of the Agreement to Initiate in which the facts attributed to it are indicated, the infringements that may constitute as well as the sanctions that may be imposed, being offered the mandatory procedure in accordance with the LPACAP to formulate allegations and provide the documentation it deems pertinent, as it has indeed done.

For all the above, it is appropriate to dismiss the allegations made.

IV

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in such a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

For its part, Article 5 of the LOPDGDD, Duty of confidentiality, states the following:

"1. The controllers and processors of data, as well as all persons involved in any phase of this, shall be subject to the duty of confidentiality referred to in Article 5.1.f) of Regulation (EU) 2016/679.

2. The general obligation stated in the previous section shall be complementary to the professional secrecy duties in accordance with its applicable regulations.

3. The obligations established in the previous sections shall remain even when the relationship of the obligated party with the controller or processor has ended."

In the present case, there has been a publication on the City Council's website of personal data of its employees, showing their names and surnames along with their employment-related data: description of the job they occupy,

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employment situation (permanent official, group, definitive or provisional assignment, temporary assignment, etc.), as well as data on the different remunerations they receive and their amounts (base salary, destination supplement, specific supplement, triennia, salary, social security, and total remuneration).

Therefore, unauthorized or unlawful access by third parties to personal data of workers has occurred as a result of the improper publication carried out by the Town Hall itself. This constitutes a violation of the obligation to ensure the confidentiality of the data, highlighting a failure to process it in such a way

that guarantees, through appropriate technical or organizational measures, an adequate security of personal data, including protection against unauthorized or unlawful processing, which is evident that has not been done. The only measure applied by the Town Hall to ensure the confidentiality of the data consisted of not publishing the ID numbers of their holders, a measure that is insufficient and ineffective to preserve the confidentiality of all personal data.

In light of all the above and in accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to the Town Hall, for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 5.1.f) of the GDPR

Without prejudice to the provisions of Article 83.5 of the GDPR, the aforementioned article provides in its paragraph 7 the following:

"7. Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

For its part, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be taken to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on

disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding regional gazette.

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4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

Therefore, once the infringement of Article 5.1.f) of the GDPR has been confirmed, in accordance with Article 83.7 of the GDPR, and as provided by Article 77.2 of the LOPDGDD, due to the category of the person allegedly responsible for the infringement, this sanction is replaced by the declaration of infringement against the City Council.

VII

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

Article 32 does not establish static security measures, but it is up to the controller to determine which security measures are necessary to ensure the confidentiality, integrity, and availability of personal data. The principle of data security requires the application of appropriate technical or organizational measures in the processing of personal data to protect such data against unauthorized or unlawful access, use, modification, disclosure, loss, destruction, or accidental or unlawful damage. In this sense, security measures are key to guaranteeing the fundamental right to data protection. The existence of the fundamental right to data protection is not possible if the confidentiality, integrity, and availability of such data cannot be guaranteed.

It should not be forgotten that, in accordance with Article 32.1 of the GDPR, the technical and organizational measures to be applied to ensure a level of security appropriate to the risk must take

into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons.

In this sense, it should be noted that the activity of the respondent involves the processing of numerous personal data (of citizens residing in the municipality and of its workers) and is continuous. Therefore, due to the activity it engages in and the personal data it processes, it is obliged to conduct a risk analysis and implement appropriate technical and organizational security measures to ensure a level of security appropriate to the risk of its activity for the rights and freedoms of individuals.

In this case, it cannot be claimed that the City Council had the appropriate measures, as it published the personal data of its workers on the municipal website without establishing any access control system, that is, in a manner accessible to anyone, even disregarding the recommendations of its own Data Protection Officer, which highlights the lack of adequate technical and organizational measures. In accordance with the available evidence, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 32 of the GDPR.

VIII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the data processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Violations" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute violations, as well as those that are contrary to this organic law."

For the purposes of the statute of limitations, Article 73 "Violations considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and shall be subject to a two-year statute of limitations, which involve a substantial breach of the articles mentioned therein, and in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

IX

Sanction for the violation of Article 32 of the GDPR

Without prejudice to the provisions of Article 83.5 of the GDPR, the aforementioned article provides in its paragraph 7 the following:

"7. Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines can be imposed on authorities and public bodies established in that Member State."

For its part, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or designated:

b) The General Administration of the State, the Administrations of the autonomous communities, and

the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the violations referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the violation and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the violation that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the data controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Likewise, when the violations are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding autonomous official gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

Therefore, once the aforementioned violation of Article 32 of the GDPR is confirmed, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the violation, this sanction is replaced by the declaration of violation to the City Council.

X

Imposition of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

The text of the resolution establishes what the violations committed have been and the facts that have led to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on the

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proactive responsibility and risk-based approach, how to comply with the GDPR and the LOPDGDD.

Specifically, the adoption of appropriate measures aimed at ensuring that the publications made by the Town Hall on its website comply with the applicable data protection regulations is required.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF CHINCHÓN, with NIF P2805200I, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, infringements classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR respectively.

SECOND: TO ORDER the TOWN HALL OF CHINCHÓN, with NIF P2805200I, that pursuant to Article 58.2.d) of the GDPR, within 6 (six) months from the date this resolution becomes final and

enforceable, to demonstrate that it has proceeded to comply with the adoption of appropriate measures aimed at ensuring that the publications made on its website comply with the applicable data protection regulations.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF CHINCHÓN.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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